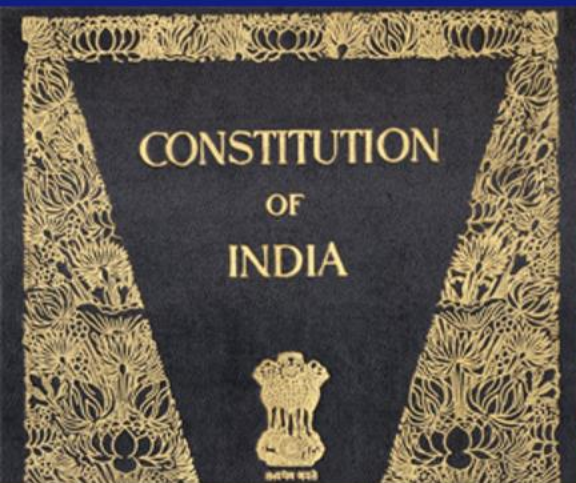


INDIAN POLITY



MODULE - 25

CITIZENSHIP
CONTEMPORARY ISSUES - I

ACQUISITION OF CITIZENSHIP (AFTER JANUARY 26, 1950)

The Citizenship Act, 1955 provides for acquisition and loss of citizenship after the commencement of the Constitution. The various modes of acquisition of citizenship prescribed by the Citizenship Act, 1955, are as follows:

- 1 CITIZENSHIP BY BIRTH**
- 2 CITIZENSHIP BY DESCENT**
- 3 CITIZENSHIP BY REGISTRATION**
- 4 CITIZENSHIP BY NATURALISATION**
- 5 CITIZENSHIP BY INCORPORATION
OF TERRITORY**
- 6 SPECIAL PROVISIONS AS TO
CITIZENSHIP OF PERSONS
COVERED BY THE ASSAM ACCORD**

6

SPECIAL PROVISIONS AS TO CITIZENSHIP OF PERSONS COVERED BY THE ASSAM ACCORD

1 The Citizenship (Amendment) Act, 1985, added the following special provisions as to citizenship of persons covered by the Assam Accord (Which is related to the foreigners' issue)

a All persons of Indian origin who came to Assam before the 1st January, 1966 from Bangladesh and who have ordinarily residents in Assam since the date of their entry into Assam shall be deemed to be citizens of India as from the 1st January 1966.

- b**
- Every person of Indian origin who came to Assam on or after the 1st January, 1966 but before the 25th March, 1971 from Bangladesh and who has been ordinarily resident in Assam since the date of his entry into Assam and who has been detected to be a foreigner shall register himself.
 - Such a registered person shall be deemed to be citizen of India for all purposes as from the date of expiry of a period of ten years from the date of detection as a foreigner.
 - But, in the intervening period of ten years, he shall have the same rights and obligations as a citizen of India, excepting the right to vote.

CITIZENSHIP AMENDMENT BILL

WHAT IS THE ISSUE?



- 1 Citizenship Amendment bill (2016) seeks to ease norms for **religious minorities** from neighbouring countries (non-Muslims) to get Indian citizenship.
- 2 But it has **polarised regions** in border states like Assam as the locals fear a **demographic change** might be ushered due to immigration.

CITIZENSHIP AMENDMENT BILL

WHAT IS THE
AMENDMENT BILL ABOUT?

- 1 “Citizenship Act, 1955” allows an immigrant to apply for citizenship if he/she has lived in India for **12 months** immediately before applying.
- 2 Additionally, the applicant should’ve also resided in India for **11** of the last **14** years before the date of application.
- 3 In 2016, an amendment bill was introduced, for relaxing the **11-year** cutoff to **6** years out of **14** for immigrants of the **6** religious faiths from **3** countries.

CITIZENSHIP AMENDMENT BILL

WHAT IS THE
AMENDMENT BILL ABOUT?

4 It is for enabling “Hindus, Sikhs, Buddhists, Jains, Parsis & Christians” from Bangladesh, Afghanistan and Pakistan to apply for Indian citizenship.

5 In other words, the amendment seeks to make non-Muslim illegal immigrants from three neighbouring countries eligible for Indian citizenship.

6 Notably, this meant that they can't be deported – thereby enabling them to continue living in India (provided that they had arrived before 2015 as Dec 31, 2014 is the cutoff date declared by SC).

CITIZENSHIP AMENDMENT BILL

IT'S BARAK VALLEY VERSUS BRAHMAPUTRA VALLEY!

- 1 The bill has stirred protests in the Brahmaputra valley of Assam, which has a predominantly Assamese speaking population.



Assamese organisations fear the Bill would lead to massive immigration of Bengali Hindus from Bangladesh, thus reducing them to a minority.

- 2 But on the contrary, the Bengali speaking region of Barak Valley in Assam has largely welcomed the proposal.
- 3 Notably, Barak Valley is a breakaway Bengali speaking region from the erstwhile East-Bengal, which became East-Pakistan (Bangladesh) in 1947.
- 4 Though the region was joined with Assam for administrative convenience, it has retained its Hindu-Bengali identity over the years.

CITIZENSHIP AMENDMENT BILL**WHAT WERE THE SUBSEQUENT
POLITICAL DEVELOPMENTS?**

- 1** A parliamentary committee was sent to Guwahati (Brahmaputra Valley), Silchar (Barak Valley) and Shillong (Meghalaya) to seek public opinion.
- 2** The bill received acceptance only in Silchar, and it was met with stringent opposition from Guwahati
- 3** The BJP is pushing for the Bill, but all other parties in Assam are against it.
- 4** Even within the parties, there is a divide as many leaders have contradicted their party line and aligned themselves with their constituencies.
- 5** Assam's BJP CM Sarbananda Sonowal has stated that he would step down if the rights of Assam's citizens aren't protected.

CITIZENSHIP AMENDMENT BILL

WHAT ARE THE DIFFERENT PERSPECTIVES?

OPPONENTS

- They vouch that the bill will aggravate the illegal migration, from Bangladesh, which might alter the demography of the state.
- The bill is also in violation of the 1985 Assam Accord, which was signed to end illegal Bangladeshi migration.
- Under the Accord, any person who came into Assam after midnight of March 24th 1971 (just before Bangladeshi war), would be identified as a foreigner.
- Constitutional violation.

SUPPORTERS

- They say that it is to save the victims of Partition (Hindu-Bengalis), who got stuck in east-Pakistan in the initial years.
- Notably, religious minorities in Bangladesh are indeed being persecuted by non-state actors (Islamic extremists) and are said to be in desperation.
- Many have crossed the borders and settled down in border states illegally, and they remain stateless for years now.
- The supporters of the amendment bill have also asked for further reduction in the time period for citizenship.

CITIZENSHIP AMENDMENT BILL

WHAT ARE THE IMPLICATIONS OF GETTING THE BILL PASSED?

- 1 Since 1971, about 20 lakh Bengali Hindus are living illegally in India.
- 2 The current bill seeks to relax citizenship rules for these people who are living in India **illegally by giving them due recognition.**
- 3 Additionally, as the bill also seeks to relax citizenship rules for religious minorities from the neighbourhood, it might **enhance influx.**
- 4 Notably, some estimates hold that as many as 1.70crore Hindus who are currently living in Bangladesh, might want to get Indian citizenship.
- 5 Nevertheless, some legal experts have opined that the amendment bill **will not stand legal scrutiny as it discriminates on the basis of religion.**

CITIZENSHIP AMENDMENT BILL**WHAT ARE THE IMPLICATIONS OF
GETTING THE BILL PASSED?**

1. Massive population explosion
2. Demographic change: The original inhabitant will become a minority in their homeland
3. Environmental degradation
4. Availability of cheap labour affects labour market adversely
5. Price rise: Mismatch in the growth rate of production and population causes price rise.
6. Security issues.

CITIZEN AMENDMENT BILL

IS THE CITIZEN'S REGISTRY UPDATE
RELATED THE AMENDMENT?

- 1 An exercise for updating the National Registry of Citizens (NRC, 1951) is currently underway, which is in order to weed out illegal immigrants.
- 2 While the NRC update operates with March 1971 as the cutoff date, the current citizenship amendment bill has set Dec 2014 as the cutoff date.
- 3 Hence, opponents of the bill feel that the amendment undermines the NRC update exercise.
- 4 Significantly, NRC Update has also polarised the state as many Bengalis of the Barak Valley fear that they might not find a place in it.



NATIONAL REGISTER OF CITIZENS

GS PAPER 2 QUESTION

POSSIBLE MAINS QUESTION

1

Examine how the updation of NRC will address the concerns of the people in Assam. Also explain the negative fallouts of the exercise.

(12 Marks) (250 words)

2

Examine the history of migration in Assam and the issue of deportation of illegal Bangladeshi migrants in Assam in the context of Citizen's Registry.

(12 Marks) (250 words)

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